



CHAPTER xvii

An Act to provide for the closing of the Chester Assay Office and the dissolution of the Company of Goldsmiths of the City of Chester and to make provisions consequent thereon; and for other purposes.
[24th May, 1962]

WHEREAS—

(1) By the Plate Assay Act, 1700 (in this Act referred to as “the Act of 1700”)—

- (a) the several cities of York, Exeter, Bristol, Chester and Norwich were appointed for the assaying and marking of wrought plate ; and
- (b) the company of goldsmiths of each of the said cities (including in particular the Company of Goldsmiths of the City of Chester) was incorporated for the purpose of making provision within each such city respectively (including in particular the city of Chester) for the assaying and marking of wrought plate :

(2) In accordance with the Act of 1700 the Company of Goldsmiths of the City of Chester has for many years maintained for the purposes aforesaid an office known as the Chester Assay Office :

(3) The companies of goldsmiths in the cities of York, Exeter, Bristol and Norwich have long since ceased to exist and no provision has for many years existed for the assaying or marking of wrought plate in any of the cities of York, Exeter, Bristol or Norwich :

(4) The Wardens and Commonalty of the Mystery of Goldsmiths of the City of London have for many years past maintained an assay office in the city of London for the assaying and marking of wrought plate :

(5) By the Plate Assay (Sheffield and Birmingham) Act, 1772 (in this Act referred to as "the Act of 1772")—

- (a) the several towns of Birmingham and Sheffield were appointed for the assaying and marking of wrought silver plate ;
- (b) the then Earl of Dartmouth and other persons were incorporated a company of or belonging to the town of Birmingham by the name of the Guardians of the Standard of Wrought Plate within Birmingham and were invested with powers for assaying and marking wrought silver plate in accordance with the provisions of that Act ; and
- (c) the then Marquess of Rockingham and other persons were incorporated a company of or belonging to the town of Sheffield by the name of the Guardians of the Standard of Wrought Plate within Sheffield and were invested with powers for assaying and marking wrought silver plate in accordance with the provisions of that Act :

(6) By the Birmingham Assay Office Act, 1824, so much of the Act of 1772 as related to the town of Birmingham was repealed and by the same Act the then Earl of Warwick and other persons were incorporated by the name of the Guardians of the Standard of Wrought Plate in Birmingham and were invested with the powers for assaying and marking gold and silver plate therein specified :

(7) The Chester Assay Office is superfluous to the requirements of the manufacturers of wrought plate in England and of the public and it is expedient that it should be closed and that the Company of Goldsmiths of the City of Chester should be dissolved as by this Act provided :

(8) It is expedient that the other provisions in this Act should be enacted :

(9) The purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows :—

1. This Act may be cited as the Assay Offices Act, 1962. Short title.
2. In this Act, unless the subject or context otherwise requires— Interpretation.

“the Act of 1700” means the Plate Assay Act, 1700 ;

“the Birmingham Guardians” means the Guardians of the Standard of Wrought Plate in Birmingham ;

“the Chester Company” means the Company of Goldsmiths of the City of Chester as incorporated by section 2 of the Act of 1700 ;

“the Chester office” means the assay office established in Chester by the Chester Company in accordance with the Act of 1700 ;

“the Goldsmiths Company” means the Wardens and Commonalty of the Mystery of Goldsmiths of the City of London ;

“the guild” means the guild, fraternity or association of goldsmiths which existed in the city of Chester before the year 1700 ;

“the penal Acts” means the Acts specified in the Second Schedule to this Act ;

“the regulating Acts” means the Acts specified in the First Schedule to this Act ;

“the Sheffield Guardians” means the Guardians of the Standard of Wrought Plate within Sheffield ;

“the special property” means such minute books, documents, plate and other articles belonging to the Chester Company as the Chester Company shall, after consultation with the Birmingham Guardians, designate as being of historical or local interest.

3. On the expiration of three months after the passing of this Act the Chester office shall be closed and shall cease to be available for the assaying or marking of wrought plate.

4.—(1) The Chester Company shall within two years after the passing of this Act wind up their affairs and shall sell or otherwise realise all their property, funds and assets of whatever kind, other than the special property, and shall out of the proceeds of such sale and realisation pay the costs and expenses of and incidental thereto and shall pay and satisfy all other their debts and liabilities.

(2) On the expiration of two years after the passing of this Act :—

(a) the Chester Company shall be dissolved and the whole of their property and assets (excluding the special property) shall vest in and become the absolute property of the Birmingham Guardians ; and

(b) the Act of 1700 shall be hereby repealed.

(3) The members of the Chester Company at the date of the dissolution of the Chester Company shall continue to be and they are hereby admitted members of the guild and nothing in this section shall restrict the powers and activities of the guild or their members (including the powers to elect aldermen, stewards and other officers, to enrol new members, to bind apprentices and to enjoy all their rights and privileges in accordance with the customs of the city of Chester and so that the Prime Warden of the Chester Company on the dissolution of that company shall become alderman of the said guild and the wardens of the Chester Company shall become stewards thereof to act until the next regular election of officers of the guild) but the guild shall not after the passing of this Act establish or maintain an office for the assaying or marking of wrought plate.

Compensation
to employees
of Chester
Company.

5.—(1) On the closing of the Chester office the persons who on the 1st day of November, 1961 were in the service of the Chester Company, and the wives or widows of such persons, shall be entitled to and shall be paid compensation or pensions or both in accordance with a scheme to be prepared as soon as may be after the passing of this Act by the Birmingham Guardians and the Chester Company and to be approved by the Board of Trade :

Provided that before approving such scheme the Board of Trade shall consult the Goldsmiths Company and the Sheffield Guardians and shall give notice thereof by advertisement in such manner as the Board shall think fit.

(2) The costs and expenses of and incidental to the preparation, advertisement and approval of the said scheme shall be borne in the same manner as the costs and expenses of the obtaining and passing of this Act.

(3) The costs and expenses of and incidental to carrying the said scheme into effect shall be paid in the first place by the Birmingham Guardians :

Provided that in case the money which on the dissolution of the Chester Company becomes the absolute property of the Birmingham Guardians under the foregoing provisions of this Act shall be insufficient to meet such costs and expenses the deficiency shall, notwithstanding anything to the contrary in any of the regulating Acts, be paid and provided by the Birmingham Guardians, the Goldsmiths Company and the Sheffield Guardians in such proportions as may be agreed between them or, failing

agreement, in such proportions as shall be certified in writing by an accountant, to be appointed as hereinafter provided, to correspond to the proportions in which work formerly carried on by the Chester office devolves on the assay offices in Birmingham, London and Sheffield respectively.

(4) Any accountant appointed for the purposes of subsection (3) of this section shall be an accountant agreed between the Birmingham Guardians, the Goldsmiths Company and the Sheffield Guardians or, failing agreement, nominated by the president for the time being of the Institute of Chartered Accountants in England and Wales.

(5) All things required or authorised under this section to be done by the Board of Trade may be done by the President or a secretary or an under-secretary or an assistant secretary of the Board.

6.—(1) The Chester Company shall, before the expiration of two years from the passing of this Act, hand over the special property to the mayor, aldermen and citizens of the city of Chester for safe custody. Disposition of certain property of Chester Company.

(2) If at any time the said mayor, aldermen and citizens are satisfied that the guild can make satisfactory arrangements for safe custody of the special property in any guildhall in the city of Chester nothing in this section shall prevent the said mayor, aldermen and citizens depositing the special property or any part thereof in such guildhall.

(3) All persons authorised by the Birmingham Guardians, the Goldsmiths Company or the Sheffield Guardians shall at all reasonable times be at liberty to inspect, photograph or take copies of the special property or of any item or items thereof.

7. Notwithstanding anything in this Act the provisions of the Saving for penal Acts shall remain in full force and effect for the protection of all marks at any time used or to be used by offices at York, Exeter, Bristol, Chester and Norwich appointed by the Act of 1700 for the assaying and marking of wrought plate. penal provisions.

8. Notwithstanding anything to the contrary in the regulating Acts— Costs of Act.

- (a) the costs, charges and expenses preliminary to, and of and incidental to the preparation of, and the application for, and the obtaining and passing of this Act, or otherwise in relation thereto, shall first be borne and paid by the Goldsmiths Company :

Provided that the Birmingham Guardians and the Sheffield Guardians may, notwithstanding anything to the contrary in the regulating Acts, make such

contributions as they respectively think fit towards the said costs, charges and expenses to be borne and paid as aforesaid by the Goldsmiths Company ; and

- (b) the Goldsmiths Company may treat as expenses of the assay office in the city of London all costs, charges and expenses paid by them under paragraph (a) of this section and not refunded by the Birmingham Guardians or the Sheffield Guardians and also all sums (if any) paid by them to the Birmingham Guardians under subsection (3) of section 5 (Compensation to employees of Chester Company) of this Act.

SCHEDULES

FIRST SCHEDULE

THE REGULATING ACTS

The Plate (Offences) Act, 1738.

The Plate Assay (Sheffield and Birmingham) Act, 1772.

The Plate Assay (Sheffield) Act, 1784.

The Birmingham Assay Office Act, 1824.

The Birmingham Assay Office Act, 1902.

The Sheffield Assay Act, 1906.

The Sheffield Corporation (Consolidation) Act, 1918.

SECOND SCHEDULE

THE PENAL ACTS

The Gold and Silver Wares Act, 1844.

The Merchandise Marks Acts, 1887 to 1953.

The Forgery Act, 1913.

The Criminal Justice Act, 1948.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Plate Assay Act, 1700	12 & 13 Will. 3 c. 4.
Plate (Offences) Act, 1738	12 Geo. 2 c. 26.
Plate Assay (Sheffield and Birmingham) Act, 1772	13 Geo. 3 c. 52.
Plate Assay (Sheffield) Act, 1784	24 Geo. 3 sess. 2 c. 20.
Birmingham Assay Office Act, 1824	5 Geo. 4 c. lii.
Gold and Silver Wares Act, 1844	7 & 8 Vict. c. 22.
Birmingham Assay Office Act, 1902	2 Edw. 7 c. xxvii.
Sheffield Assay Act, 1906	6 Edw. 7 c. ix.
Forgery Act, 1913	3 & 4 Geo. 5 c. 27.
Sheffield Corporation (Consolidation) Act, 1918	8 & 9 Geo. 5 c. lxi.
Criminal Justice Act, 1948	11 & 12 Geo. 6 c. 58.

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ARRANGEMENT OF SECTIONS

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2. Interpretation.
3. Closing of Chester office.
4. Dissolution of Chester Company.
5. Compensation to employees of Chester Company.
6. Disposition of certain property of Chester Company.
7. Saving for penal provisions.
8. Costs of Act.

SCHEDULES :

First Schedule—The regulating Acts.

Second Schedule—The penal Acts.